

23CMCV00209 23CMCV00209

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-07-20

Motion: MOTION FOR LEAVE TO AMEND COMPLAINT DATE: July 20, 2026 TIME: 8:30 A.M.

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Case Number: 23CMCV00209 Hearing Date: July 20, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL
DISTRICT

S. COLLIER,
et al.,

Plaintiffs,

vs.

COUNTY OF LOS ANGELES, et al.,

Defendants.

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CASE

NO: 23CMCV00209

[TENTATIVE] ORDER RE: MOTION FOR LEAVE TO
AMEND COMPLAINT

DATE: July 20, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Plaintiff

S. Collier

Responding Party: Defendant

County of Los Angeles

Notice: Ok

Tentative Ruling: None.

I.

BACKGROUND

Plaintiff S. Collier ("Plaintiff") filed this police-abuse action on February 14, 2023 against defendants the County of Los Angeles (the "County") and various individual defendants, since dismissed. In her initial complaint, Plaintiff asserted three violations of the Bane Civil Rights Act (Civ. Code § 52.1), intentional and negligent infliction of emotional distress, false arrest and imprisonment, and battery.

Jury trial began on January 12, 2026. At the outset of trial, Plaintiff dismissed the individual Defendants Mark Marbach, Luis Torres, Jon Livingston and Erich Marbach. Plaintiff rested her case-in-chief on January 16, 2026.

On January 23, 2026 Plaintiff filed a written motion for mistrial and the Court heard oral argument. The Court granted Plaintiff's motion for mistrial and reset trial to commence on August 17, 2026.

On April 20, 2026, Plaintiff filed the instant Motion to Amend Complaint.

The County filed its Opposition on April 29, 2026.

On May 5, 2026, Plaintiff filed her Reply.

On May 12, 2026, the Court held the initial hearing on Plaintiff's motion. In its tentative ruling, which was posted prior to the hearing, the Court noted that it needed the trial transcripts in this matter to properly resolve the instant motion. In its Minute Order, the Court ordered all trial transcripts to be delivered to Department E no later than May 22, 2026 and further order this matter stayed pending the resolution of a then-pending Writ of Mandate. (See Minute Order, 5/12/26.)

II.

ANALYSIS

A.

Legal
Standard

The court may, in furtherance of justice, allow a party to amend any pleading upon any terms as may be proper. (Code Civ. Proc. §§ 473(a), 576.) California courts liberally exercise discretion to permit the amendment of pleadings in light of a strong policy favoring resolution of all disputes between parties in the same action. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939; *Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530.) Accordingly, requests for leave to amend generally will be granted

unless the party seeking to amend has been dilatory in bringing the proposed amendment, and the delay in seeking leave to amend will cause prejudice to the opposing party if leave to amend is permitted. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490.) Absent a showing of prejudice, delay in seeking to amend, by itself, generally will not justify a denial of leave to amend. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.) Thus, the policy favors amendment in the absence of both unexcused delay and prejudice.

Pursuant to Cal. Rules of Court, Rule 3.1324(a), "a motion to amend a pleading before trial must: [¶] (1) Include a copy of the proposed amendment or amended pleading ...; [¶] (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and [¶] (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located." (Cal. R. Ct., Rule 3.1324(a).) The motion to amend a pleading must also include a supporting declaration specifying (1) the effect of the amendment, (2) why the amendment is necessary, (3) when the facts giving rise to the amended allegations were discovered, and (4) why the proposed amendment was not made earlier. (*Id.*, Rule 3.1324(b).)

B.

Discussion

Plaintiff moves

the Court for leave to amend her Complaint as to her first three causes of action, for: (1) Violations of Civil Rights [Cal. Civ. Code 52.1] (Based on Unreasonable Use of Force); (2) Violations of Civil Rights [Cal. Civ. Code 52.1] (Based on Unreasonable Seizures of persons During Execution of Search Warrant); and (3) Violations of Civil Rights [Cal. Civ. Code 52.1] (Based on Unlawful Arrest). Plaintiff's first three causes of action were initially only stated against the (now dismissed) individual Defendants; Plaintiff now seeks to amend to state her first three causes of action against the County.

The County

opposes, arguing that the causes of action at issue cannot be asserted because they are untimely, Plaintiff's voluntary dismissal cannot be reversed as to the individual defendants, the proposed amendment would severely prejudice the

County, and Plaintiff cannot satisfy Rule of Court 3.1324 because there are no newly discovered facts or evidence, simply a failure to properly plead the Complaint.

1.

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Individual Defendants

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appears to be a disconnect regarding Plaintiffs' intent as to the individual defendants. The Court understands

Plaintiff, via her motion, to seek leave to assert the first three causes of action in her Complaint against the County.

The Court does not understand Plaintiff to be requesting to re-assert the first three causes of action against the individuals or to be a request to somehow void or nullify her dismissal of the individual defendants. Plaintiff confirms the Court's understanding in her Reply brief where she states "[t]his motion does not seek to reinstate any causes of action against any individual defendants who have been dismissed. Rather it seeks to name the County, which has never been dismissed from this action, as a defendant in Plaintiff's First, Second and Third Causes of Action under the Bane Act." (Reply, p. 2:3-6.)

As Plaintiff

has confirmed that her motion seeks only to assert her first three causes of action against the County, the Court does not address the County's arguments regarding the propriety of Plaintiff's request as it pertains to the individual defendants.

2.

The County

As to the

County, Plaintiff contends that – despite the allegations of the Complaint - it was the parties' understanding and intention that her first three causes of action would be asserted against the County, as is evidenced by the verdict form submitted to the jury specifically referencing the first three causes of action. The County contends any assertion of new Bane Act claims is facially untimely and any amendment would result in severe prejudice to the County.

The Court's trial notes indicate that, in addition to dismissing the individual defendants, Plaintiff voluntarily dismissed certain causes of action, specifically the Second and Third Causes of Action. A determination as to whether the court reporter's records reflect any such voluntary dismissal of specific causes of action is necessary for the Court's determination of the instant motion.

Given the Court's need for a transcript of the proceedings and given that the Court still does not have the transcripts, the Court will discuss with the parties at oral argument the following: (1) immediate procurement of a transcript of the trial proceedings for the Court's review; and (2) what effect this ruling may have on the upcoming August trial date.

To the Court's understanding, the Petition for Writ of Mandate was denied as of June 24, 2026.

Accordingly, the Court will discuss the status of the Petition for Writ of Mandate with the parties at oral argument, lifting the stay imposed on May 12, 2026, and whether the stay has had any impact upon trial readiness.